

21STCV08425 21STCV08425

County: los-angeles

Division: Civil Law and Motion

Department: 731

Hearing date: 2026-07-22

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DEBRA FELIPE, an individual, Plaintiff(s), vs. C J CONCRETE CONSTRUCTION, INC. California Corporation; JOHN C. SARNO, an individual; and DOES 1 through 50, inclusive, Defendant(s).

ORDER RE: JUDGMENT DEBTOR, DEBRA FELIPE'S CLAIM OF EXEMPTION Dept. 731 8:30 a.m. July 22, 2026

Moving Party: Plaintiff, Debra Felipe

Opposing Party: Defendant, CJ Concrete Construction Inc.

Notice: OK

1. Background Facts

This suit involves cross pleadings relating to the parties' employment relationship and alleged violations of law that occurred during Defendants' employment of Plaintiff.

The action was resolved by judgment on March 11, 2025, following a bench trial in which the Court dismissed all claims alleged in Plaintiff's Complaint, awarding Defendants costs and reasonable attorneys' fees, and finding in favor of CJ Concrete Construction ("CJ Concrete") in relation to the claims alleged in its First Amended Cross-Complaint against Plaintiff and Cross-Defendant Construction Paper, Inc., awarding the sum of \$1,934,766.15, and permitting recovery of pre- and post-judgment interest, costs, and reasonable attorneys' fees.

On October 7, 2025, CJ Concrete filed (1) a notice of hearing for December 4, 2025, and (2) a notice of opposition relating to a claim of exemption purportedly noticed by Plaintiff as judgment debtor on September 22, 2025, and seeking exemption from enforcement of the judgment in this action through wage garnishment. No copies of Plaintiff's claim of exemption as noticed of September 22, 2025, were attached to CJ Concrete's October 7th filings.

On October 20, 2025, CJ Concrete filed a proof of service noting service of the October 7th notices by personal service on Plaintiff on October 12, 2026.

On December 4, 2025, Plaintiff's claim of exemption came before the Court but was not called for hearing, with no appearance by Plaintiff. The Court continued the hearing to January 29, 2026, and ordered the levying officer of the Los Angeles Sheriff's Department ("LASD") to file a copy of Plaintiff's claim of exemption.

On January 26, 2026, CJ Concrete filed a supplemental filing in support of its opposition to Plaintiff's claim of exemption, specifically seeking to use deposition transcripts in lieu of testimony at the hearing.

On January 29, 2026, the Court conferred with counsel for the parties, at which time Plaintiff's counsel indicated that Plaintiff was still claiming the exemption but was experiencing problems with the LASD concerning filing a copy of the claim with the Court. The Court ordered Plaintiff be allowed to file the claim with the Court and continued the hearing to April 30, 2026.

On April 30, 2026, the claim again came before the Court, with no appearance on behalf of Plaintiff. The Court inquired into whether Plaintiff had made court-ordered disclosures relating to appearance and examination as a judgment debtor, which CJ Concrete via counsel represented Plaintiff had not. The Court continued the claim of exemption hearing to May 19, 2026.

On May 19, 2026, the Court conferred with counsel for the parties, at which time Plaintiff's counsel requested a continuance, which the Court granted, continuing the hearing on the claim of

exemption to July 22, 2026. The Court also denied without prejudice CJ Construction's oral request for attorneys' fees and costs in lieu of a noticed motion for the same relief.

On July 2, 2026, CJ Concrete filed a motion, which requests, without directly citing underlying authority, three forms of relief: (1) denial of the claim of exemption; (2) an order directing Plaintiff to produce debtor documents not theretofore produced; and (3) an order granting monetary sanctions against Plaintiff and her counsel to compensate CJ Concrete for the fees and costs incurred as a result of Plaintiff's refusal to comply with court orders relating to production of judgment debtor financial information and attending a debtor's examination. Among other things, CJ Concrete's motion includes as Exhibit B a copy of the August 20, 2025, claim of exemption presently before the Court, and its associated September 22, 2025, notice of filing with CJ Concrete.

Plaintiff's claim of exemption is now before the Court.

2. Claim of Exemption

a. Legal Standard on Claim of Exemption

Except as otherwise provided by law, all property of the judgment debtor is subject to enforcement of a money judgment. (Code Civ. Proc., § 695.010, subd. (a).) After entry of a money judgment other than those arising from the Family Code (subject to additional requirements), and upon application of the judgment creditor, the clerk of the court shall issue a writ of execution, which must be directed to the levying officer in the county where the levy is to be made and to any registered process server. (Code Civ. Proc., § 699.510.)

Property that has been levied upon may be claimed to be exempt as provided in Code of Civil Procedure sections 703.510 to 703.610 unless otherwise provided by statute. (Code Civ. Proc., § 703.510, subd. (a); see Code Civ. Proc., §§ 703.510-703.610 [Enforcement of Money Judgments, Exemptions, Procedure for Claiming Exemptions After Levy].)

The debtor must make the claim within 15 days of the date the notice of levy on the property was served (20 days if the notice of levy was served by mail). (Code Civ. Proc., § 703.520, subd. (a).)

The claim must be executed under oath and include the name and mailing address of the claimant, a description of the property claimed to be exempt, a financial statement as required by section 703.530, a citation of the statute on which the

claim is based, and a statement of facts necessary to support the claim. (Code Civ. Proc., § 703.520, subd. (b).) A financial statement is required where property is claimed as exempt pursuant to a provision exempting property to the extent necessary for the support of the judgment debtor and the spouse and dependents of the judgment debtor. (Code Civ. Proc., § 703.530, subd. (a).) The financial statement must be executed under oath by the judgment debtor and the debtor's spouse unless the same are living separate and apart, and must include:

- (1) The name of the spouse of the judgment debtor;
- (2) The name, age, and relationship of all persons dependent upon the judgment debtor or the spouse of the judgment debtor for support;
- (3) All sources and the amounts of earnings and other income of the judgment debtor and the spouse and dependents of the judgment debtor;
- (4) A list of the assets of the judgment debtor and the spouse and dependents of the judgment debtor and the value of such assets; and
- (5) All outstanding obligations of the judgment debtor and the spouse and dependents of the judgment debtor.

(Code Civ. Proc., § 703.530, subds. (b)(1)-(5), (c).)

The hearing on the motion shall be held not later than 30 days from the date the notice of motion was filed with the court unless continued by the court for good cause. (Code Civ. Proc., § 703.570, subd. (a).)

The claim of exemption is deemed controverted by the notice of opposition to the claim of exemption and both shall be received in evidence. (Code Civ. Proc., § 703.580, subd. (c).) If no other evidence is offered, the court, if satisfied that sufficient facts are shown by the claim of exemption (including the financial statement if one is required) and the notice of opposition, may make its determination thereon. (Code Civ. Proc., § 703.580, subd. (c).) If not satisfied, the court shall order the hearing continued for the production of other evidence, oral or documentary. (Code Civ. Proc., § 703.580, subd. (c).)

At the hearing on the claim of exception, the claimant has the burden of proof. (Code Civ. Proc., § 703.580, subd. (b).)

b. Discussion

After review, and for reasons explained as follows, the Court continues the hearing on Plaintiff's claim of exemption.

Through no fault of the parties, in July 2026, this action was reassigned to a new judicial officer who does not have the benefit of his predecessor's interactions with the parties vis-à-vis Plaintiff's long-continued claim of exemption.

Separately, as highlighted in Defendant's notice of opposition, Plaintiff's claim of exemption—the only copy of which in the record is attached to CJ Concrete's motion for sanctions and otherwise fails to appear in the record—does not, beyond the claim of exemption form, support the \$6.87 million in monthly expenses that Plaintiff claims in her August 22, 2025, claim of exemption. (See 7/2/26 Motion at Exhibit B, WG-007/EJ-165, § 4 [claim of exemption form, monthly expenses section].)

Last, in light of the many past continuances, nearly a year has passed since Plaintiff executed her claim of exemption on August 22, 2025, during which time her financial conditions may have changed, and about which the Court has no

information beyond the slim record before the Court.

Under these circumstances, the Court finds it most appropriate to continue this hearing one last time to afford the parties one final opportunity to brief and prove up their present position on the claim of exemption, which will permit the Court to make a final, informed decision based on the most complete record.

c. Conclusion

Plaintiff (judgment debtor) Debra Felipe's claim of exemption is accordingly CONTINUED to 8:30 AM on October 13, 2026, to be heard concurrently with Defendant CJ Concrete Construction Inc.'s motion for sanctions.

Plaintiff SHALL file and serve papers supporting her claim of exemption no later than Friday, September 18, 2026, i.e., 16 court days before the October 13, 2026, hearing. The documents may include but not limited to updated financial statement; pay stubs; tax returns; bank statements; monthly expense documentation; proof supporting each claimed expense; and declaration under penalty of perjury.

The parties MAY file an opposition and reply, which SHALL conform with Code of Civil Procedure section 1005, subdivision (b).

Plaintiff Debra Felipe is ordered to give notice.

Parties who intend to submit on this tentative must send an email to the court at indicating intention to submit on the tentative as directed by the instructions provided on the court website at www.lacourt.org. If the department does not receive an email indicating the parties are submitting on the tentative and there are no appearances at the hearing, the motion may be placed off calendar. If a party submits on the tentative, the party's email must include the case number and must identify the party submitting on the tentative. If the parties do not submit on the tentative, they should arrange to appear remotely.

DATED: July 22, 2026 _____

MARK C. KIM

Judge of the Superior Court